

25LBCV01828 25LBCV01828

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-06

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Case Number: 25LBCV01828 Hearing Date: August 6, 2026 Dept: S27

Defendant propounded RPDs, FROGs, and SROGs on Plaintiff on 1/06/26. To date, Plaintiff has not served responses.

Defendant therefore moves to compel responses to the RPDs, FROGs, and SROGs.

Plaintiff opposes the motion. Plaintiff's attorney declares there have been staffing issues at the firm, the client is not tech-savvy, which has delayed responding to discovery, and responses will be served prior to the hearing.

To the extent responses are not served prior to the hearing, the motions to compel will be granted. If responses are served, the motions will be deemed substantively moot. If the parties submit on the tentative, the motions will be deemed substantively moot.

Defendant's notice of motion indicates Defendant seeks imposition of sanctions against Plaintiff and her law firm in the amount of its fees and costs incurred in connection with the motion. Defense Counsel declares fees in excess of \$1000 have been or will be incurred in connection with the motion. Plaintiff argues sanctions should not be imposed because Plaintiff acted with good cause or substantial justification. CCP §§2030.290(c), 2031.300(c). Plaintiff relies on *Foothill Properties v. Lyon/Copley Corona Associates* (1996) 46 Cal.App.4th 1542, 1557-58, *Doe v. U.S. Swimming, Inc.* (2011) 200 Cal.App.4th

1424, 1434, and Do v. Superior Court (2003) 109 Cal.App.4th 1210, 1213 to support her position.

In Lyon, the court of appeals reversed a sanctions order, finding that a party's refusal to turn over discovery documents until after a hearing on a motion for a protective order was substantially justified and made in good faith. In Doe, the court of appeals affirmed a trial court's imposition of sanctions where the defendant persisted in insisting the trial court must review the documents in camera before they would be produced, despite the trial court's admonishment that it would not do so. In Do, the issue was whether an indigent client represented by a pro bono attorney was entitled to fees or not.

Plaintiff's interpretation of the sanctions statute would turn the statute on its head. Defendant propounded discovery, and Plaintiff failed to timely respond due to problems in Plaintiff's (and her attorneys') control and outside Defendant's control. The Court therefore finds imposition of sanctions appropriate.

The request for sanctions is granted. Sanctions in the requested amount of \$1000 are imposed against Plaintiff and her attorney of record, jointly and severally; the sanctions must be paid to Defendant, by and through its attorney of record, within twenty days.

The Court notes that Defendant has a motion to deem RFAs admitted scheduled for 9/03/26. Plaintiff's opposition addressed this motion also, though it is not before the Court at this time. The Court asks the parties to work together to resolve the issues relating to the motion without the need for a hearing. Plaintiff is admonished that, per §2033.280(c), sanctions are ABSOLUTELY mandatory in connection with a motion to deem RFAs admitted, and there is no good cause or substantial justification carve-out in the statute.

Defendant is ordered to give notice.